

(2) The Education Act, 1921, and this Act may be cited together as the Education Acts, 1921 and 1923.

(3) This Act shall be deemed to have had effect as from the first day of April, nineteen hundred and twenty-three.

CHAPTER 39.

An Act to amend the law relating to the relief from rates to be given in respect of agricultural land in England and agricultural land and heritages in Scotland, and for purposes in connection therewith. [2nd August 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Further exemption of agricultural land in England from rates. 59 & 60 Vict. c. 16.

1.—(1) During the continuance of this Act, section one of the Agricultural Rates Act, 1896 (hereinafter in this Act referred to as “the principal Act”), which provides that an occupier of agricultural land in England shall, in the case of every rate to which that Act applies, be liable to pay one half only of the rate in the pound payable in respect of buildings and other hereditaments, shall have effect as if for the references in that section to “one half” there were substituted references to “one quarter”:

Provided that, notwithstanding any provision contained in any other enactment for assessing agricultural land to any rate at less than the rateable value thereof or otherwise giving relief in respect of any rate to occupiers of agricultural land, an occupier of agricultural land shall not, as compared with an occupier of buildings or other hereditaments, pay any rate in a less proportion than one-quarter.

(2) Where under any local Act passed, or any Provisional Order confirmed by Parliament at any time before the end of the present Session of Parliament, a rate to which the principal Act applied has, before the passing of this Act, become or thereafter becomes consolidated with a rate to which that Act did not apply, section one of that Act as amended by this section shall apply to the consolidated rate notwithstanding any provision contained in that Act or Order with respect to the proportion in which occupiers of agricultural land are to be liable to be assessed to or to pay that rate.

2. In respect of the deficiency which will arise by reason of the foregoing provisions of this Act in the produce of rates made by spending authorities, there shall—

Additional
deficiency
grant.

- (a) be paid in respect of every year during which this Act continues in force to the Local Taxation Account a sum (in this Act referred to as “the additional annual grant”) of such an amount as is certified from time to time under the provisions of this Act; and
- (b) be issued from the Local Taxation Account to each spending authority such sum as is certified in manner aforesaid to represent the share for each half-year of that authority in the additional annual grant.

3.—(1) The Minister of Health shall from time to time estimate, as respects each spending authority, the deficiency which will arise in each half year by reason of the foregoing provisions of this Act in the produce of the rates made by that authority, and, subject as hereinafter provided, the amount of that deficiency shall be taken to be the difference between the sum which the Minister estimates would have been raised by those rates in respect of agricultural land if this Act had not passed and the sum which the Minister estimates will be so raised under the foregoing provisions of this Act:

Ascertain-
ment and
certifying of
amount of
additional
annual
grant and of
shares of
spending
authorities.

Provided that in estimating any such deficiency as aforesaid no account shall be taken of any highway rate levied under paragraph (2) of section two hundred and sixteen of the Public Health Act, 1875, in any part of an urban district unless such a rate was so levied in that

38 & 39 Vict.
c. 55.

part of the district during the year ending on the thirty-first day of March, nineteen hundred and twenty-three.

(2) A sum equal to the aggregate for the year of the deficiencies so estimated for all the spending authorities shall be the amount of the additional annual grant, and a sum equal to the deficiency estimated as aforesaid in the case of each spending authority shall be the share of that spending authority for the half year in the additional annual grant, and the Minister shall certify accordingly the amount of the additional annual grant and of the share therein of each spending authority.

Relief in respect of rates given under other Acts to land of certain kinds to extend to all agricultural lands.

4. The provisions of any enactment contained in any Act other than this Act or the principal Act by virtue of which an occupier of land in England which is used as arable, meadow or pasture ground only is liable, as compared with an occupier of buildings, to be assessed to or to pay any rate in the proportion only of one quarter, shall be extended so as to give, during the continuance of this Act, the same relief to occupiers of any land which is agricultural land within the meaning of the principal Act but is not land to which those provisions apply.

Relief not to be taken into account in determining rents under 13 & 14 Geo. 5. c. 9, s. 12.

5. The relief to occupiers of agricultural land granted by the principal Act as amended by this Act shall not be taken into account by an arbitrator in determining for the purposes of section twelve of the Agricultural Holdings Act, 1923, what rent is properly payable in respect of a holding.

Application and amendment of certain provisions of principal Act.

6.—(1) The provisions of the principal Act set out in the first column of Part I. of the Schedule to this Act shall have effect for the purposes of this Act, so far as it relates to England, as if they were herein re-enacted with the modifications (if any) specified in the second column of the said Part.

(2) During the continuance of this Act, section three of the principal Act (which relates to contributions from more than one parish) shall have effect subject to the modifications specified in Part II. of the Schedule to this Act, and section nine of the said Act shall have effect as if the definition of rateable value so specified were substituted for the definition of rateable value contained in the said section nine.

7. Where before the first day of September, nineteen hundred and twenty-three, any person being the occupier of any agricultural land in England has, in respect of a rate in relation to which this Act has effect, paid an amount in excess of the amount which he was, having regard to the provisions of this Act, liable to pay in respect thereof, the amount of that excess shall, subject as hereinafter provided, be repaid by means of an allowance from the amount due from that person in respect of any unpaid instalment of that rate or due in respect of the rate for the like purpose made next after the date aforesaid:

Adjustment
of excess
payments of
rates.

Provided that, if before the first day of January, nineteen hundred and twenty-four, no such allowance as aforesaid has been made, or if the amount of the excess has not been allowed as aforesaid in full, the amount of the excess or the balance thereof unallowed, as the case may be, shall, on a demand in that behalf made by the person by whom the instalment or rate was paid or his representative be recoverable as a debt due to him by the authority by which the rate was levied.

8. As from the fifteenth day of May, nineteen hundred and twenty-three, and during the continuance of this Act—

Annual
value of
agricultural
lands and
heritages
for county
and parish
rates in
Scotland.

- (1) the annual value of all agricultural lands and heritages in Scotland shall, for the purposes of all the rates leviable by county councils and parish councils (with the exception hereinafter provided with respect to rates leviable under certified classifications) be held to be the nearest aggregate sum of pounds sterling to one-half of the annual value of such lands and heritages as appearing in the valuation roll, subject, in the case of rates leviable by parish councils, to the deductions in pursuance of section thirty-seven of the Poor Law (Scotland) Act, 1845;

3 & 9 Vict.
c. 83.

- (2) every occupier of agricultural lands and heritages in Scotland shall be entitled, on payment of the occupier's share of any rate in respect of such lands and heritages leviable by a county council or parish council (with the exception aforesaid), to recover from the owner of the lands and heritages by retention out of rent or otherwise one-half of the amount so paid by him,

and in respect of the amount so recovered from him the owner of any lands and heritages shall be deemed to be charged therewith for the purposes of the Income Tax Acts;

59 & 60 Vict.
c. 37.

- (3) section one of the Agricultural Rates, Congested Districts, and Burgh Land Tax Relief (Scotland) Act, 1896 (hereinafter in this Act referred to as "the Act of 1896"), except the definition of the expression "agricultural lands and heritages" (including the proviso to that definition), shall cease to have effect save for the purpose of construing any enactment in which that section is referred to.

Additional
annual
grant for
Scotland.

9. In respect of the deficiency which will arise in the produce of the rates leviable by county and parish councils (hereinafter in this Act referred to as "rating authorities") by reason of the net reduction in the annual value of agricultural lands and heritages for rating purposes effected by the immediately preceding section of this Act, there shall—

- (a) be paid in respect of the local financial year ending the fifteenth day of May, nineteen hundred and twenty-four, and each succeeding local financial year to the Local Taxation (Scotland) Account a sum (in this Act referred to as "the additional annual grant for Scotland") of such an amount as is ascertained and certified from time to time under the provisions of this Act; and
- (b) be paid in respect of each of the aforesaid years out of the Local Taxation (Scotland) Account under the direction of the Secretary for Scotland to each rating authority a sum equal to the aggregate of the amounts payable in respect of that year to the rating authority in respect of the rates leviable by the authority ascertained and certified as aforesaid.

Ascertain-
ment of
amount of
additional
annual
grant for
Scotland

10.—(1) The Secretary for Scotland shall ascertain and certify with respect to the local financial year ending the fifteenth day of May, nineteen hundred and twenty-four, and each succeeding local financial year:—

- (a) the amount which is to be taken as having been raised during the year by each rating authority

by each rate leviable by the authority, and the portion of such amount which would represent the owners' share thereof if this Act had not passed; and

and of payments to rating authorities.

- (b) the whole valuation of the rateable area of each rating authority for each rate, and the portion of such valuation which represents the valuation of agricultural lands and heritages.

(2) That part of the owners' share of the amount to be taken as having been raised by each rate which represents the proportion borne by the valuation of agricultural lands and heritages in the rateable area to the whole valuation of the rateable area shall, to the extent of three-eighths thereof, ascertained and certified by the Secretary for Scotland with respect to each local financial year, be the amount payable with respect to that year to the rating authority in respect of that rate out of the Local Taxation (Scotland) Account, and a sum equal to the aggregate of the amounts so payable in respect of each local financial year to all the rating authorities ascertained and certified as aforesaid shall be the amount of the additional annual grant for Scotland in respect of that year.

11. As from the fifteenth day of May, nineteen hundred and twenty-three, and during the continuance of this Act, subsection (4) of section four of the Act of 1896 shall cease to have effect, and every sum paid or payable under subsection (3) of the said section, or subsection (1) of section two of the Local Taxation Account (Scotland) Act, 1898, or this Act to any rating authority in respect of any rate shall, for all purposes, be deemed to have been raised or to be raiseable by that rate and shall be appropriated in reduction of the total amount leviable by that rate.

Appropriation of sums paid to rating authorities in Scotland. 61 & 62 Vict. c. 56.

12.—(1) As from the fifteenth day of May, nineteen hundred and twenty-three, and during the continuance of this Act, every certified classification within the meaning of the Act of 1896 which was in force at the said date shall cease to have any force or effect except any existing classification which shall be certified by the Secretary for Scotland in terms of the next succeeding subsection of this section:

Certified classifications to cease.

Provided that a parish council shall have power at any time within two months after the passing of this Act

to alter any existing classification so far as necessary to enable it to be certified as aforesaid.

(2) If it shall be certified by the Secretary for Scotland that the rates leviable on the occupiers of agricultural lands and heritages in pursuance of an existing classification (including an existing classification altered 'as aforesaid') are not more than one-half of the rates which would without classification be leviable on such occupiers in terms of this Act, such classification shall have effect, and the provisions of the section of this Act relating to annual value of agricultural lands and heritages for county and parish rates shall not apply to the occupiers' share of the rates leviable by the parish council in pursuance of that classification:

Provided that a parish council shall have power to abandon any classification certified in terms of this subsection.

Application
of certain
provisions
of Act of
1896.

13. The provisions of the Act of 1896 set out in Part III. of the Schedule to this Act shall have effect for the purposes of this Act, so far as it relates to Scotland, as if they were re-enacted in this Act with the modifications (if any) specified in the second column of that Part of the Schedule.

Relief not to
be taken
into account
in fixing
rents.

14. The relief to occupiers of agricultural lands and heritages effected by the Agricultural Rates (Scotland) Acts, 1896 to 1923, shall not be taken into account by the land court in fixing a fair or equitable rent for a holding under the Small Landholders (Scotland) Acts, 1886 to 1919, or by an arbiter in determining for the purposes of section twelve of the Agricultural Holdings (Scotland) Act, 1923, what rent is properly payable in respect of a holding.

Charging of
additional
annual
grants.

15. The additional annual grant and the additional annual grant for Scotland shall be charged on the Consolidated Fund of the United Kingdom or the growing produce thereof, and shall be issued thereout in such manner and at such times as the Treasury direct.

Explanation
and mean-
ing of
"allot-
ment."
12 & 13
Geo. 5. c. 51.

16. For the purposes of removing doubts, it is hereby declared that—

(a) in the principal Act, as amended by this Act, the expression "allotment" includes an allotment garden within the meaning of the Allotments Act, 1922; and

- (b) in the Act of 1896, as amended by this Act, the expression "allotment" includes an allotment garden within the meaning of the Allotments (Scotland) Act, 1922 :

12 & 13
Geo. 5. c. 52.

Provided that nothing in this section shall operate to extend the meaning of the expression "agricultural land" in the principal Act, as amended by this Act, so as to include a cottage garden not exceeding one-quarter of an acre, or to extend the meaning of the expression "agricultural land and heritages" in the Act of 1896 so as to include land occupied together with a house as a garden.

17.—(1) This Act may be cited as the Agricultural Rates Act, 1923.

Short title
and dura-
tion.

(2) This Act, so far as it relates to England, shall be construed as one with the principal Act, and that Act and this Act, so far as it relates to England, may be cited together as the Agricultural Rates Acts, 1896 and 1923.

(3) This Act, so far as it relates to Scotland, and the Act of 1896, and the Local Taxation Account (Scotland) Act, 1898, may be cited together as the Agricultural Rates (Scotland) Acts, 1896 to 1923.

(4) This Act shall, so far as it relates to England, be deemed to have come into operation on the first day of April, nineteen hundred and twenty-three, and for the purposes of this Act any rate made in England within the period of four weeks immediately before the said first day of April to meet expenses to be incurred after that date shall be deemed to have been made on that date.

(5) This Act shall continue in force until the thirty-first day of March, nineteen hundred and twenty-five, unless Parliament otherwise determines.

Sections
6 and 13.

S C H E D U L E.

PART I.

Provisions of principal
Act applied.

Modifications.

Subsections (4), (5) and (6) of section 4, (certifying of annual sums payable in respect of deficiency).

In subsections (4) and (5) the words "section three of this Act" shall be substituted for the words "this section," in subsection (5) the words "or alteration in the valuation list" or basis or standard for the county "rate" shall be inserted after the word "error," and in subsection (6) the word "first" shall be omitted.

Subsections (1) (3) and (4) of section 6 (procedure for ascertaining deficiency).

For paragraph (a) of subsection (1) there shall be substituted "(a) by " every spending authority in relation " to the sums received or to be " received by them, or their predecessors or successors, in respect of " any rate to which the provisions " of the principal Act as amended " by this Act apply," and in subsection (3) for the words from "and " those regulations" to the end of the subsection there shall be substituted the words " and every regulation " so made shall be laid before both " Houses of Parliament as soon as " may be after it is made, and, if " an address is presented by either " House within twenty-one days on " which that House has sat next " after any such regulation is laid " before it praying that the regulation " may be annulled, His Majesty in " Council may annul the regulation, " but without prejudice to the validity " of anything previously done thereunder."

Provisions of principal
Act applied.

Modifications.

Subsection (2) of sec-
tion 7.

Section 8.

Schedule - - - The words "Metropolitan borough coun-
"cils" shall be inserted after the
words "the receiver of the Metro-
"politan police district."

PART II.

MODIFICATION OF S. 3 OF PRINCIPAL ACT.

The words "the sums issuable to them in respect of the
"said rate out of the Local Taxation Account under the principal
"Act and this Act" shall be substituted for the words "the
"sum issuable to them in respect of the said rate on account of
"their share of the annual grant," and three-quarters of the
rateable value of the agricultural land in the parish shall be
substituted for one half of that rateable value.

SUBSTITUTED DEFINITION OF RATEABLE VALUE.

The expression "rateable value" in the case of the county
rate means the net annual value according to the basis or
standard for the county rate, and in the case of any other
rate levied on an assessable value based on any annual value
not being the rateable value as stated in the valuation list
means that annual value.

PART III.

Provisions of Act of
1896 applied.

Modifications.

In Section 1 the defi-
nition of "agricul-
tural lands and
heritages" (includ-
ing the proviso to
that definition).

The words "in the Act of 1896 and this
Act" shall be inserted after the words
"agricultural lands and heritages."

Subsection (4) of
section 2.

Provisions of Act of
1896 applied.

Modifications.

Section 6 - - The words "any additional relief to the
" occupiers of agricultural lands and
" heritages effected by this Act " shall be substituted for the words
" the relief effected by this Act from
" a proportion of the consolidated
" rate, poor rate, and other rates
" before mentioned."

CHAPTER 40.

An Act to amend the Merchant Shipping Acts,
1894 to 1921, with respect to the expenses of
the medical attendance of masters and seamen
suffering from Venereal Disease.

[2nd August 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 34 (1)
of 6 Edw. 7.
c. 48.

1. Subsection (1) of section thirty-four of the Merchant Shipping Act, 1906 (which relates to the expenses of medical attendance of masters and seamen suffering from injuries and illnesses), shall apply to any case where the illness from which the master or seaman is suffering is venereal disease, and accordingly that subsection shall have effect as if the words "venereal disease or" were omitted therefrom.

Short title,
construction
and com-
mencement.

2.—(1) This Act may be cited as the Merchant Shipping Acts (Amendment) Act, 1923, and shall be construed as one with the Merchant Shipping Acts, 1894 to 1921, and those Acts and this Act may be cited together as the Merchant Shipping Acts, 1894 to 1923.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-four.
